

22STCV23537 22STCV23537

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Case Number: 22STCV23537 Hearing Date: August 12, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

LISA

CHAN and KURT SELBACH

Plaintiffs,

Case No.:

22STCV23537

v.

[Tentative]

Denied

LYFT,

INC., a Delaware Corporation; RICHARD DARRELL JONES, an Individual; JAKE

MUNGARAY, an Individual; and DOES 1 to 50, Inclusive

Defendants.

Hearing

Date: August 12, 2026

Moving Parties: Plaintiffs Lisa Chan and Kurt Selbach

Responding

Party: Defendants Richard Darrell

Jones and Jake Mungaray

HEARING: Motion for a New Trial

The

Court considered the moving, opposition, and reply papers.

RULING

The

Court denies the Motion for New Trial.

BACKGROUND

On July 21, 2022,

Plaintiffs Lisa Chan and Kurt Selbach filed the Complaint against Lyft Inc.,

Richard Darrell Jones, and Jake Munagary, alleging a single cause of action for negligence.

April 13, 2026, the jury returned a complete defense verdict finding.

On June 22, 2026, Plaintiff filed the Motion for a New Trial.

On June 29, 2026, Defendants filed the Opposition.

On August 5, 2026, Plaintiff filed the Reply.

LEGAL

STANDARD

“The verdict may be vacated and any other decision may be modified or vacated, in whole or in part, and a new or further trial granted on all or part of the issues, on the application of the party aggrieved, for any of the following causes, materially affecting the substantial rights of such party:

“1. Irregularity in the proceedings of the court, jury or adverse party, or any order of the court or abuse of discretion by which either party was prevented from having a fair trial.

“2. Misconduct of the jury; and whenever any one or more of the jurors have been induced to assent to any general or special verdict, or to a finding on any question submitted to them by the court, by a resort to the determination of chance, such misconduct may be proved by the affidavit of any one of the jurors.

“3. Accident or surprise, which ordinary prudence could not have guarded against.

“4. Newly discovered evidence, material for the party making the application, which he could not, with reasonable diligence, have discovered and produced at the trial.

“5. Excessive or inadequate damages.

“6. Insufficiency of the evidence to justify the verdict or other decision, or the verdict or other decision is against law.

“7. Error in law, occurring at the trial and excepted to by the party making the application.”

(Code Civ. Proc., § 657.)

DISCUSSION

Timeliness

Defendants

request the Court not consider Plaintiffs' Reply as it was filed late. However, as all parties had time to read the reply days before the hearing, the Court finds that any issue with its timeliness was non-prejudicial. Therefore, the Court exercises its discretion to consider all papers received. (Iverson v. Superior Court, (1985) 167 Cal. App. 3d 544, 546.)

Merits

Plaintiffs

first argue that counsel for Defendant Mungaray committed prejudicial misconduct during the opening statement by telling the jury that Defendant Mungaray doesn't have the resources to retain expert witnesses. Plaintiffs characterize this as a deliberate effort to frame Defendant Mungaray as a sympathetic underdog before any witness was sworn, in violation of the settled rule that a deliberate showing of a party's poverty is highly prejudicial and may constitute reversible error. (Hart v. Wielt (1970) 4 Cal.App.3d 224, 234.) Plaintiffs note that the rule is now codified in CACI No. 117, which instructs jurors not to consider the wealth or poverty of any party.

Plaintiffs

contend that the misconduct was incurable and that the Court's re-reading of CACI No. 117 did not cure it, because evidence of poverty operates on jurors' emotions rather than their reasoning from disputed facts. They emphasize that counsel for Defendant Jones, who had no incentive to assist Plaintiffs, told the Court that the genie was out of the bottle and analogized the comment to improperly disclosing liability insurance, which is presumptively prejudicial because it invites a verdict based on who is paying rather than who is at fault. (Evid. Code, § 1155.) Plaintiffs argue the prejudice is reflected in the verdict, because the investigating officer's report and testimony, the citation, and the subsequent finding of fault established that Defendant Mungaray violated Vehicle Code section 22517, the dooring statute, yet the jury still returned a defense verdict.

Plaintiffs

next argue that denial of their mistrial motion was an abuse of discretion, because the comment came from an experienced attorney during opening statement, was a direct declarative statement about the defendant's finances rather than a fleeting aside, and was immediately recognized as incurable by counsel for a co-defendant with no motive to manufacture favorable error. (Code Civ. Proc., § 657, subd. (1).)

Plaintiffs

also argue that the refusal to give their requested instructions on Vehicle Code sections 21754, 360, and 22517 was prejudicial error in law, because a party is entitled to instruction on every theory supported by substantial evidence. (Code Civ. Proc., § 475; Cal. Const., art. VI, § 13.) They contend that Vehicle Code section 21754 was needed to give the jury a statutory benchmark for lawful passing on the right and to rebut the defense theory that Plaintiffs' tandem bicycle was unsafely positioned, that Vehicle Code section 360 supplied the definition of highway needed to determine whether the rules of the road applied to the location, and that Vehicle Code section 22517, the most prejudicial omission, was the very statute the investigating officer identified as the primary collision factor. Plaintiffs argue that general negligence instructions such as CACI No. 400 and CACI No. 700 were no substitute for these specific statutory standards and that, without them, the jury could not properly test Defendant Jones's theory that Plaintiffs threaded the needle between the stopped vehicles and the curb. They conclude that the resulting verdict is against law under Code of Civil Procedure section 657, subdivision (6), and the product of error in law under subdivision (7).

Plaintiffs

further argue in the alternative that the cumulative effect of these errors independently warrants a new trial, because a jury primed to view the case through sympathy was simultaneously deprived of the statutory framework needed to anchor its deliberations and then asked to weigh an unforeseen defense theory without that framework. They contend it is reasonably probable a more favorable result would have been reached absent these errors.

In

opposition, Defendant Jones first argues that Plaintiffs waived any challenge based on the opening-statement comment by counsel for Defendant Mungaray because they neither objected nor moved for a mistrial. Defendant Jones states that during opening statements on March 26, 2026, counsel for Defendant Mungaray told the jury that Defendant Mungaray retained no experts because he lacked the resources to do so, and that Plaintiffs did not object when the statement was made. Defendant Jones explains that it was his own counsel who brought the comment to the Court's attention and later formally moved for a mistrial on April 1, 2026, arguing the comment was prejudicial to Defendant Jones and improperly implied that Defendant Mungaray lacked the means to defend himself or satisfy a judgment. He notes that the Court denied that motion and re-read CACI No. 117, and that Plaintiffs stood silent throughout and never

joined the motion. Defendant Jones reasons that Plaintiffs declined to object because the comment fit their trial strategy and benefitted them in the moment, and that they raised the issue only weeks after an adverse verdict.

Defendant

Jones grounds the waiver argument in the rule that a party who becomes aware of misconduct or irregularity during trial must promptly bring it to the court's attention if he wishes to object or be deemed to have waived the point as a ground for a new trial. (*Weathers v. Kaiser Foundation Hospitals* (1971) 5 Cal.3d 98, 103.) He also relies on the principle that a party who learns of an objectionable fact in time to seek a remedy may not sit in silence, take his chances on a favorable verdict, and complain only after a hostile one. (*Sepulveda v. Ayako Ishimaru* (1957) 149 Cal.App.2d 543, 547.)

Defendant

Jones next argues that Plaintiffs' own decision not to prosecute their case against Defendant Mungaray undermines the motion. He contends that Plaintiffs made a conscious choice to point the finger solely at Defendant Jones and to divert attention from Defendant Mungaray, so they cannot credibly claim the opening comment prejudiced them. Defendant Jones points out that the direct examination of Plaintiffs' sole liability expert, Dr. Kuba Glazek, focused entirely on Defendant Jones being in the best position to see and avoid Plaintiffs rather than on Defendant Mungaray. He adds that Plaintiffs' closing argument and accompanying presentation directed the jury to hold only Defendant Jones accountable and included statements supporting Defendant Mungaray's account of asking permission before opening the door. Defendant Jones further notes that Plaintiffs' counsel told the jury that Defendant Mungaray did everything he was supposed to do and that his conduct was not a substantial factor in causing harm, and even demonstrated marking no on the special verdict question asking whether Defendant Mungaray's negligence was a substantial factor in causing harm to Plaintiffs. In Defendant Jones's view, the jury did exactly what Plaintiffs asked with respect to Defendant Mungaray, which negates any claim of prejudice.

Defendant

Jones then argues that Plaintiffs' challenge to the refusal of special instructions on Vehicle Code sections 21754, 360, and 22517 lacks merit. He first points out that Plaintiffs did not request the section 22517 instruction, that Defendant Jones requested it, and that Plaintiffs did not join the request, so Plaintiffs waived any reliance on that ruling. Defendant Jones also argues that Plaintiffs'

reliance on the investigating officer's finding of fault and the citation issued to Defendant Mungaray misrepresents the trial record, because it was Plaintiffs who filed two motions in limine to exclude Officer Hanson's finding of fault and the citation under section 22517, and the Court granted both motions over Defendant Jones's objection. He contends that the jury never heard this evidence precisely because Plaintiffs fought to keep it out, so Plaintiffs cannot now claim prejudice from a result flowing from their own strategy. As to sections 360 and 21754, Defendant Jones argues that the definition of highway in section 360 was tied to the section 22517 instruction that Plaintiffs never requested, and that the Court declined to give section 21754 because it addressed vehicles overtaking and passing on the right, a situation not presented in this case, and that Plaintiffs made no argument when the Court announced it would not give these instructions.

"The trial court, no less than the appellate court, is expressly enjoined by article VI, section 4 ½, of our Constitution to deny a new trial for error of law unless such error is prejudicial." (Brown v. George Pepperdine Foundation (1943) 23 Cal.2d 256, 262.) "Instructional error in a civil case is prejudicial where it seems probable that the error prejudicially affected the verdict." (Soule v. General Motors Corp. (1994) 8 Cal.4th 548, 580.)

Here, the Court finds that the alleged misconduct was not prejudicial. First, as to the comments made about Defendant Mungaray's wealth, Plaintiffs' theory of the case rested on pinning the incident on Defendant Jones, as shown by Plaintiffs' closing arguments asking the jury to not give rideshare drivers an out by blaming their passengers. (Page Decl. Exhibit (c).) Furthermore, the Court re-read CACI No. 117 directing the jury not to consider any party's wealth right after the disputed statement. Thus, any comments made about Defendant Mungaray's alleged poverty were likely to favor Plaintiff's theory of the case and were not prejudicial. Second, the alleged misinstructions were also not prejudicial. Vehicle Code Section 22517 defines the duty of a person opening a car door into traffic, which would run to Defendant Mungaray, not Defendant Jones. (Veh. Code § 22517.) Vehicle Code sections 21754 and 360 define highways and the passing-on-the-right standard. (Veh. Code § 360, 21754.) However, the general negligence and ordinary-care instructions gave the jury the framework to evaluate whether Plaintiffs rode reasonably, and Plaintiffs have not shown a reasonable probability that a

specific passing-on-the-right instruction would have changed the verdict. (Soule, supra 8 Cal.4th 548, 580-582.)

Therefore,

the Court denies the Motion for a New Trial.